

HCS HB 3005 -- RECONSIDERATION OF MATERIALS IN LIBRARIES

SPONSOR: Justus

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Emerging Issues by a vote of 10 to 0. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 8 to 1 with 1 voting present.

The following is a summary of the House Committee Substitute for HB 3005.

This bill establishes provisions relating to the reconsideration of materials in a public library or public school library. The bill defines "digital library material" as material including, but not limited to, digital audiobooks, electronic journals, electronic magazines, and other resources that are directly accessible through the public library or school library database, but excluding any online content that is available outside of the public library or school library database or platform.

This bill defines "library material" as any resource in print or non-print format, including, but not limited to, books, magazines, microfiche, microfilm, slides, exhibits, and other materials that are found in a public library or school library.

The bill defines "reconsideration" as a process in which library personnel, public schools, school districts, or library governing bodies review materials in a public library or school library due to a formal complaint filed by a member of the community. The outcome of this reconsideration may include relocating or removing library materials or removing or restricting access to digital library materials.

This bill requires all public libraries and public school libraries to establish a policy outlining the process for library materials and digital library materials to undergo reconsideration based on a complaint made about library materials or digital library materials from a member of the community.

The policy must be made publicly available as provided in the bill. A public library or school library will remove library materials from its permanent collection, relocate library materials within its collection, or remove or restrict access to digital library materials within its collection only if the materials have been reviewed in accordance with an established

policy for the reconsideration of library materials and digital library materials that comply with the requirements of the bill.

To request reconsideration of library materials or digital library materials, the individual making the request must sign an affidavit affirming that: the individual has read or consumed the entirety of the challenged material; and the individual resides in the taxing district of the public library in which the request is made or the school district in which the request is made. Each public library or school library must develop an appeals process for the reconsideration policy that outlines a process for appealing a decision made regarding the removal of library materials or digital library materials, as specified in the bill.

Digital library resources will not track or monitor the access of library materials or digital library materials by individual users, especially minors, including any tracking or monitoring to personalize user experiences. An individual who is an employee or volunteer of a public library or school library must not be subject to termination, demotion, discipline, retaliation, or any other penalty for refusing to remove library materials or digital library materials before the materials have been reviewed in accordance with a policy that complies with the provisions of this bill.

This bill is similar to HB 1146 (2025) and SB 159 (2025).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPOSERS: Supporters say that this bill will provide clear and transparent policies for libraries trying to ensure that the material and content located therein is up to certain standards. This will promote local control of such matters so that a library might create a safe environment for kids to learn and grow.

Testifying in person for the bill were Representative Justus; Sarah Colbert, Missouri Association of School Librarians; Missouri Library Association; Scott Bernier, EBSCO Information Services.

OPPOSERS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.